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Convention on the Rights of Persons with Disabilities

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Committee on the Rights of Persons with Disabilities

Concluding observations on the initial report of Singapore**

I. Introduction

1. The Committee considered the initial report of Singapore[1] at its 606th and 607th meetings,[2] held on 30 and 31 August 2022. It adopted the present concluding observations at its 620th meeting, held on 9 September 2022.

2. The Committee welcomes the initial report of Singapore, which was prepared in accordance with the Committee's reporting guidelines, and thanks the State party for its written replies[3] to the list of issues prepared by the Committee.[4]

3. The Committee appreciates the fruitful and sincere dialogue held with the State party's delegation, which was diverse and multisectoral and which included representatives of the relevant government ministries.

II. Positive aspects

4. The Committee welcomes the measures taken by the State party to promote the rights of persons with disabilities and to implement the Convention since ratification in 2013. It notes with appreciation the ratification of the Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired or Otherwise Print Disabled, and the adoption of the following:

(a) The third Enabling Master Plan (2017–2022), in 2017;

(b) The fourth Enabling Master Plan (2022–2030), in 2022;

(c) The Building and Construction Authority's Code on Accessibility in the Built Environment, in 2019; Accessibility Fund, in 2007; and Universal Design Guide for Public Places, in 2016;

(d) The Copyright Act 2021.

* Reissued for technical reasons on 23 November 2022.
** Adopted by the Committee at its twenty-seventh session (15 August–9 September 2022).
[1] CRPD/C/SGP/1.
[2] See CRPD/C/SR.606 and 607.
[3] CRPD/C/SGP/RQ/1.
[4] CRPD/C/SGP/Q/1.

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III. Principal areas of concern and recommendations

A. General principles and obligations (arts. 1–4)

5. The Committee is concerned:

(a) That national legislation and policies do not systematically incorporate the human rights model of disability but largely employ a medical model, which engenders systemic discrimination of persons with disabilities on the basis of their impairment;

(b) That the legislation implementing the Convention is confined to intermittent sector-specific legal provisions with scant or no discernible relationship to each other, without any overarching legislation to ensure comprehensive application and some level of coherence in all areas of life;

(c) That national legislation does not contain a formal definition of disability, framed in conformity with article 1 of the Convention, and that the existing assessment and certification mechanisms are not harmonized across the national disability-related legislation;

(d) That persons with disabilities, including persons with intellectual disabilities, persons with psychosocial disabilities, autistic persons and children with disabilities, and their representative organizations are not closely consulted with and actively involved in the development and implementation of all legislation and policies to implement the Convention.

6. **The Committee recommends that the State party:**

(a) **Review all of its existing disability-related legislation and policies, including the third Enabling Master Plan, remove from them all vestiges of a medical model of disability, and base them throughout on the human rights model of disability;**

(b) **Enact overarching legislation to protect the rights of persons with disabilities, ensuring the comprehensive, coherent application of the principles and rights guaranteed by the Convention in all areas in life;**

(c) **Harmonize the legal definition of disability and the assessment and certification mechanisms across the national legal system, to protect the human rights of all persons with disabilities, including persons with intellectual disabilities, persons with psychosocial disabilities and autistic persons;**

(d) **Ensure that persons with disabilities, including persons with intellectual disabilities, persons with psychosocial disabilities, autistic persons and children with disabilities, and their representative organizations are closely consulted with and actively involved in the development and implementation of all legislation and policies to implement the Convention.**

7. The Committee notes that the State party:

(a) Maintains its reservation to articles 12 (4) and 29 (a) (iii) of the Convention;

(b) Has not ratified the Optional Protocol to the Convention.

8. **The Committee encourages the State party:**

(a) **To withdraw its reservations to articles 12 (4) and 29 (a) (iii) of the Convention;**

(b) **To ratify the Optional Protocol to the Convention.**

B. Specific rights (arts. 5–30)

Equality and non-discrimination (art. 5)

9. The Committee is concerned about:

(a) The absence of a comprehensive definition of discrimination against persons with disabilities, encompassing multiple and intersectional forms of discrimination;

(b) The lack of recognition of denial of reasonable accommodation as a form of discrimination on the basis of disability.

10. **The Committee recalls its general comment No. 6 (2018) and targets 10.2 and 10.3 of the Sustainable Development Goals, and recommends that the State party:**

(a) **Adopt a comprehensive definition of discrimination on grounds of disability, including multiple and intersectional discrimination encompassing age, race, gender, ethnicity, religion, language, sexual orientation, nationality and migration status, or any other status, and ensure that persons with disabilities are comprehensively protected from discrimination;**

(b) **Adopt legal provisions and create practice to recognize denial of reasonable accommodation as a form of discrimination in all areas of life, and include an express definition of reasonable accommodation consistent with article 2 of the Convention.**

Women with disabilities (art. 6)

11. The Committee notes with concern:

(a) The lack of specific indicators and mechanisms to measure and monitor the outcomes of public policies aimed at achieving inclusive equality for women and girls with disabilities;

(b) The lack of a gender perspective in disability-related legislation and policies, and the lack of a disability perspective in gender-related legislation and policies, which reinforce discrimination, marginalization and exclusion of women and girls with disabilities, in particular women and girls with disabilities belonging to ethnic and linguistic minorities, migrant women and girls with disabilities, and women and girls affected by leprosy;

(c) The failure in the national legislative framework to explicitly address intersectional discrimination against women and girls with disabilities, and the absence of data gathered and research conducted on multiple and intersectional discrimination faced by women and girls with disabilities with a view to designing adequate policy responses;

(d) The lack of empowerment programmes for women with disabilities in public and political life and in decision-making processes in public and private entities, including those in the judiciary.

12. **The Committee recalls its general comment No. 3 (2016) and Goal 5 of the Sustainable Development Goals, and recommends that the State party:**

(a) **Adopt benchmarks and indicators about the progress in achieving inclusive equality for women and girls with disabilities in all areas of life;**

(b) **Mainstream the rights of women and girls with disabilities into all gender equality legislation, policies and programmes, particularly the Women's Charter 1961, as amended, and the Administration of Muslim Law Act 1966, as amended, and ensure close consultation with and the effective participation of women and girls with disabilities and their representative organizations in the design and implementation of all gender- and disability-related legislation, policies and programmes;**

(c) **Conduct an intersectional analysis of implementation of the Convention with respect to women and girls with disabilities across all policy areas, including education, employment, health and justice;**

(d) **Adopt legislation and take all additional measures necessary with a view to achieving empowerment and full inclusion of women and girls with disabilities in all areas of life, particularly in political life and in public decision-making processes, including in government bodies and in the judiciary.**

Children with disabilities (art. 7)

13. The Committee observes with concern:

(a) The lack of a comprehensive strategy to protect children with disabilities, in particular autistic children, children with intellectual disabilities and children with psychosocial disabilities, from stigmatization, discrimination, violence, ill-treatment and institutionalization;

(b) The fact that corporal punishment of children is legal, in violation of the fundamental right of all children to protection from corporal punishment and other cruel or degrading forms of punishment.

(c) The absence of policies, mechanisms and processes to consult with children with disabilities and enable them to express their views freely on all matters concerning them.

14. **The Committee recalls its joint statement, with the Committee on the Rights of the Child, on the rights of children with disabilities (2022), and recommends that the State party:**

(a) **Adopt a comprehensive strategy to ensure that children with disabilities, including autistic children, children with intellectual disabilities and children with psychosocial disabilities, are adequately protected from violence, exploitation and abuse, and mainstream a disability perspective into the Children and Young Persons Act 1993 and the National Youth Council;**

(b) **Amend the Criminal Procedure Code and explicitly prohibit corporal punishment of children with disabilities without exception;**

(c) **Ensure enforcement and monitoring of the protection of children with disabilities from violence, exploitation and abuse in all settings, including in schools, and promote positive, non-violent and participatory forms of child-rearing through awareness-raising campaigns and training programmes, in accessible formats;**

(d) **Establish policies, mechanisms and processes to facilitate the effective participation of children with disabilities and ensure that they are able to express their views freely on all matters concerning them.**

Awareness-raising (art. 8)

15. The Committee is concerned about:

(a) The persistence of discriminatory attitudes, negative stereotypes and prejudice against persons with disabilities, in particular autistic persons, persons with intellectual disabilities, persons with psychosocial disabilities and persons affected by leprosy, in all aspects of life;

(b) The lack of awareness-raising campaigns about the dignity, abilities and rights of persons with disabilities in society and the absence of a long-term strategy for raising awareness about the rights of persons with disabilities and the human rights model of disability, with the effective participation of persons with disabilities and their representative organizations.

16. **The Committee recommends that the State party:**

(a) **Adopt a national strategy, in close consultation with and the active involvement of organizations of persons with disabilities, including organizations of women and children with disabilities, to raise awareness of and combat prejudice against persons with disabilities, in particular autistic persons, persons with intellectual disabilities, persons with psychosocial disabilities and persons affected by leprosy, and monitor its effectiveness;**

(b) **Introduce training and awareness-raising programmes about the rights of persons with disabilities and the human rights model of disability at all levels of education, in public service and for the general public, in accessible formats and with the active involvement of persons with disabilities and their representative organizations.**

Accessibility (art. 9)

17. The Committee notes with concern:

(a) The lack of comprehensive and effective measures, including legislation, to implement the full range of accessibility obligations under the Convention, including the lack of a comprehensive accessibility strategy covering all areas, in particular physical access, access to public transportation, accessible information and communications technology, and access to information technologies;

(b) The insufficient services provided by the sign language interpreter system, and the limited availability of speech-to-text technologies.

18. **The Committee recalls its general comment No. 2 (2014), and recommends that the State party:**

(a) **Adopt a national accessibility strategy, with concrete time frames, that includes all areas covered by the Convention, including public transportation and, inter alia, the use of guide dogs and other service animals, and ensure the allocation of sufficient resources and the effectiveness of mechanisms for monitoring and redress;**

(b) **Adopt legislation, regulations, policies and programmes to ensure the accessibility and affordability of sign language interpreting services, speech-to-text technologies and other information technologies.**

Right to life (art. 10)

19. The Committee is gravely concerned that the death penalty is still legal in the State party and is imposed and carried out on persons with intellectual disabilities, persons with psychosocial disabilities and autistic persons, including for crimes not involving intentional killing. It is equally concerned about the execution of a person with intellectual disabilities despite the prior intervention of the Committee's Chair.

20. **The Committee urgently recommends the State party abolish the death penalty for persons with intellectual disabilities, persons with psychosocial disabilities and autistic persons, including for crimes not involving intentional killing, and immediately cease imposing and carrying out the death penalty in such cases, in accordance with the limits established under international law. It encourages the State party to ratify the International Covenant on Civil and Political Rights and the Second Optional Protocol thereto, aiming at the abolition of the death penalty.**

Situations of risk and humanitarian emergencies (art. 11)

21. The Committee is concerned about:

(a) The lack of specific and comprehensive disaster risk reduction plans, policies and protocols for the prevention and reduction of risks for persons with disabilities;

(b) The failure to involve persons with disabilities sufficiently in disaster risk reduction and climate change adaptation plans, in accordance with the Sendai Framework for Disaster Risk Reduction 2015–2030 and Goal 7 of the Incheon Strategy to "Make the Right Real" for Persons with Disabilities in Asia and the Pacific.

22. **The Committee recommends that the State party:**

(a) **Accelerate the adoption of inclusive and accessible disaster risk reduction plans for all persons with disabilities, particularly women and children with disabilities, persons with intellectual disabilities and persons with psychosocial disabilities;**

(b) **Closely consult and actively involve persons with disabilities, through their representative organizations, in designing and implementing all disaster risk reduction and climate change adaptation plans at the national and district levels and at all stages of the process, and adopt a comprehensive strategy, in accordance with the Sendai Framework for Disaster Risk Reduction 2015–2030, Sustainable Development Goals 11 and 13 and the Incheon Strategy.**

23. The Committee is concerned about the disproportionate impact of the coronavirus disease (COVID-19) pandemic on persons with disabilities, in particular persons with disabilities in institutions, including through sexual violence and abuse, and about the barriers faced by persons with disabilities in gaining access to emergency information and support measures.

24. **The Committee recommends that the State party, instructed by the guidance prepared by the Office of the United Nations High Commissioner for Human Rights and the policy brief prepared by the United Nations Sustainable Development Group on a disability-inclusive response to COVID-19:**

(a) **Mainstream disability into its COVID-19 response and recovery plans and other economic and social programmes to tackle the negative impact of the pandemic, and protect persons with disabilities, particularly women and girls with disabilities, from sexual violence and abuse;**

(b) **Take measures to deinstitutionalize persons with disabilities in times of emergency and to provide them with appropriate support to live in the community, in accordance with the Committee's guidelines on deinstitutionalization, including in emergencies;**

(c) **Closely involve persons with disabilities and their representative organizations, including organizations of women with disabilities, at all stages of the development and implementation of COVID-19 response and recovery plans;**

(d) **Ensure that in situations of risk and humanitarian emergencies, all persons with disabilities are able to receive the necessary information in accessible formats and on the appropriate electronic devices.**

Equal recognition before the law (art. 12)

25. The Committee is concerned about the deprivation of legal capacity of persons with disabilities under certain conditions, and about the persistence of the guardianship and substituted decision-making regime, in particular with regard to medical decisions, depriving persons with intellectual disabilities and persons with psychosocial disabilities of their right to equal recognition before the law.

26. **The Committee recalls its general comment No. 1 (2014), and recommends that the State party expedite the review of its national legislation, including the Mental Capacity Act 2008, the Vulnerable Adults Act 2018, the Mental Health (Care and Treatment) Act 2008, the Criminal Procedure Code and the Prisons Act 1933, and guarantee the right of all persons with disabilities, including persons with intellectual disabilities and persons with psychosocial disabilities, to equal recognition before the law, establish supported decision-making mechanisms in all areas of life, take all appropriate measures for the provision of individualized support and train the relevant personnel accordingly.**

Access to justice (art. 13)

27. The Committee is concerned that persons with disabilities face barriers in their access to justice, including attitudinal barriers and prejudice among administrative and court personnel, insufficient training of personnel to guide persons with disabilities through complex administrative and judicial proceedings, including criminal proceedings, and a lack of information in such training about the requirements of persons with disabilities. The Committee is also concerned about the practice of the courts of basing their assessment of the requirements for individualized procedural accommodation solely on medical evaluations.

28. **The Committee recalls the International Principles and Guidelines on Access to Justice for Persons with Disabilities (2020), endorsed by the Committee, and target 16.3 of the Sustainable Development Goals, and recommends that the State party:**

(a) **Adopt, in accordance with the Convention, an action plan on access to justice for persons with disabilities, and take the legal, administrative and judicial**

measures necessary to eliminate all restrictions on the effective participation of persons with disabilities in all stages of administrative and judicial procedures;

(b) **Provide age- and gender-appropriate procedural accommodation, including individualized assistance, to ensure that persons with disabilities are able to participate effectively in administrative and judicial proceedings at all stages and in all areas of the law;**

(c) **Develop alternative means of information and communication for use throughout administrative and judicial proceedings, such as Braille, sign language, Easy Read and audio and video transcription, apply the principle of universal design and adopt an action plan to ensure physical access to all facilities in which administrative and judicial procedures take place;**

(d) **Intensify the provision of training on the Convention to administrative, judicial and law enforcement officials, including to judges.**

Liberty and security of person (art. 14)

29. The Committee is concerned that persons with disabilities, especially persons with intellectual disabilities and persons with psychosocial disabilities, may be deprived of their liberty on the basis of their impairment.

30. **The Committee recalls its guidelines on the right to liberty and security of persons with disabilities, and recommends that the State party:**

(a) **Repeal all legislative provisions allowing for the involuntary deprivation of liberty of persons with intellectual disabilities and persons with psychosocial disabilities on the grounds of their impairment or their perceived dangerousness to themselves or others;**

(b) **Introduce legislation ensuring non-discrimination in all procedures in connection with the deprivation of liberty, guaranteeing, for example, procedural accommodation for persons with disabilities, including for the preparation of proceedings, during interrogation and for detention-related complaints;**

(c) **Explicitly prohibit the institutionalization of persons with disabilities, particularly persons with intellectual disabilities and persons with psychosocial disabilities, and effectively protect their rights to liberty and security of person, on an equal basis with others;**

(d) **Provide training to health professionals, administrative and judicial officers, law enforcement staff and prison officials on the rights of persons with disabilities and on monitoring mechanisms to ensure the rights of persons with disabilities in all facilities in which persons with disabilities are deprived of their liberty.**

Freedom from torture or cruel, inhuman or degrading treatment or punishment (art. 15)

31. The Committee is concerned about reports of inhuman or degrading treatment of persons with disabilities in psychiatric facilities, including the use of electroshock therapy, restraints, isolation, seclusion, humiliation and forced medication, on the basis of the perceived dangerousness to themselves or to others. It is also concerned at the imposition by the State party of corporal punishment against persons with disabilities.

32. **The Committee recommends that the State party:**

(a) **Abolish all legislation, policies and practices that allow torture or cruel, inhuman or degrading treatment of persons with intellectual disabilities and persons with psychosocial disabilities, such as the use of electroshock therapy, restraints or isolation, or that allow medication without their free and informed personal consent, on the basis of their impairment;**

(b) **Abolish corporal punishment against persons with disabilities, without any exceptions;**

(c) **Ensure effective, accessible remedies for all persons with disabilities, including persons with disabilities in institutions, whose right to freedom from torture and cruel, inhuman or degrading treatment or punishment is violated, ensure expeditious and independent investigations of such violations, provide redress and sanction the perpetrators.**

Freedom from exploitation, violence and abuse (art. 16)

33. The Committee notes with concern:

(a) The lack of awareness among the general population, including among persons with disabilities, about measures for the protection of persons with disabilities from exploitation, violence and abuse, and the lack of a comprehensive strategy against all forms of exploitation, violence and abuse against persons with disabilities, in all settings, including in the family, at school and in the workplace;

(b) The lack of specific measures to protect all women and girls with disabilities, in particular women and girls with intellectual disabilities and women and girls with psychosocial disabilities, against all forms of gender-based violence, the lack of accessible shelters for women and girls with disabilities who are victims of violence, exploitation and abuse, and the limited availability of information and statistical data regarding violence against women and girls with disabilities and related offences.

34. **The Committee recommends that the State party:**

(a) **Take effective measures to raise awareness about the protection of persons with disabilities from exploitation, violence and abuse; adopt a comprehensive strategy to prevent the exploitation, violence and abuse of persons with disabilities, especially persons with intellectual disabilities, persons with psychosocial disabilities and persons with disabilities in institutions; ensure that persons with disabilities are provided with information about how to avoid, recognize and report cases of violence, exploitation and abuse; and ensure that persons with disabilities who are victims of exploitation, violence or abuse have access to independent complaint mechanisms and appropriate remedies, including rehabilitation;**

(b) **Collect data on violence, exploitation and abuse against persons with disabilities to identify all instances of gender-based violence against women and girls with disabilities, in the private and public spheres, and ensure budget allocations for and access to support services and shelters for women and girls with disabilities who are victims of gender-based violence, exploitation and abuse.**

Protecting the integrity of the person (art. 17)

35. The Committee is concerned that the Voluntary Sterilization Act 1974 allows for the sterilization of persons with disabilities based on a court order declaring that it is necessary in the best interests of the person concerned.

36. **The Committee recommends that the State party repeal the Voluntary Sterilization Act 1974 and expressly and effectively protect women and girls with disabilities from sterilization without their free and informed personal consent.**

Living independently and being included in the community (art. 19)

37. The Committee is concerned about:

(a) The lack of awareness in society and among public authorities of the right of persons with disabilities to live independently and be included in the community, the right to choose where and with whom to live and the right not to be obliged to live in a particular living arrangement;

(b) The widespread institutionalization of persons with disabilities on the basis of their impairment and the construction of new institutions, groups homes, and adult disability hostels and homes, which results in a high number of persons with disabilities, including autistic persons, persons with intellectual disabilities and persons with psychosocial

disabilities being deprived of their right to live independently and to be included in the community.

38. **The Committee recalls its general comment No. 5 (2017) and its guidelines on deinstitutionalization, including in emergencies, and recommends that the State party:**

(a) **Ensure the deinstitutionalization of all persons with disabilities in institutions of any kind, provide community-based services facilitating the full enjoyment by all persons with disabilities of their right to live in the community and to be fully included and participate in the community, and adopt a strategy to this end with clear goals, benchmarks and time frames;**

(b) **Adopt awareness-raising programmes to broadly promote an understanding of the right of choice and self-determination of persons with disabilities concerning their living arrangements, the right not to be obliged to live in a particular living arrangement, and the crucial significance of inclusion in, as opposed to segregation from, the community for effectively guaranteeing all rights of persons with disabilities.**

Freedom of expression and opinion, and access to information (art. 21)

39. The Committee is concerned about the way in which national legislation, and its practical application, infringes upon the freedom of expression and opinion, freedom of peaceful assembly and freedom of association of persons with disabilities and their representative organizations, and about reports of reprisals against and continuing pressure on civil society organizations for their advocacy work on the rights of persons with disabilities.

40. **The Committee recalls its general comment No. 7 (2018), and recommends that the State party recognize the role of civil society organizations, in particular organizations of persons with disabilities, as human rights defenders, prohibit any reprisals against individuals and organizations and take effective measures to protect the free exchange of ideas in the civic space. It also recommends that the State party revise its national legislation – in particular, the Protection from Online Falsehoods and Manipulation Act 2019, the Foreign Interference (Countermeasures) Act 2021, the Administration of Justice (Protection) Act 2016 and the Public Order Act 2009 – in accordance with general comments No. 34 (2011) and No. 37 (2020) of the Human Rights Committee, and adapt accordingly the jurisprudence of all administrative bodies and courts applying it.**

41. The Committee notes with concern:

(a) The lack of recognition of Singapore Sign Language as an official language;

(b) The barriers faced by persons with disabilities in gaining access to public information and communications, including to websites and media services, and the absence of legally binding information and communications standards for non-governmental websites and media services to ensure the accessibility of information provided to the public.

42. **The Committee recommends that the State party:**

(a) **Recognize Singapore Sign Language as an official language and promote access to and the use of sign language in all areas of life, ensure the availability of qualified sign language interpreters, and ensure close consultation and engagement with the deaf community, especially in schools, universities and other educational settings;**

(b) **Enact legally binding information and communications standards for public and private websites and media services to ensure the accessibility of information provided to the public for all persons with disabilities.**

Respect for privacy (art. 22)

43. The Committee is concerned about the protection of data of persons with disabilities in the health-care system, including in private practices, hospitals and institutions. It is also

concerned about practices that require persons with disabilities to disclose their impairment in relationships with private entities such as employers and insurance providers.

44. **The Committee recommends that the State party substantially strengthen its legislation on data protection for persons with disabilities, particularly in the health-care system, by ensuring that data are processed either on the basis of the free and informed personal consent of the data subject or on some other legitimate, non-discriminatory basis laid down by law, and that data are collected for explicit, specified and legitimate purposes and not processed in a way incompatible with those purposes, that they are processed without discrimination and in a lawful, fair and transparent manner, and that the data subject has a right to effective remedy for misuse of their data.**

Respect for home and the family (art. 23)

45. The Committee is concerned that persons with intellectual disabilities and persons with psychosocial disabilities who are deprived of the right of equal recognition before the law cannot enter into marriage, exercise their family and parental rights or adopt children on an equal basis with others in the State party.

46. **The Committee recommends that the State party remove all obstacles preventing persons with intellectual disabilities and persons with psychosocial disabilities who are deprived of their legal capacity from entering into marriage, exercising their family and parental rights and adopting children on an equal basis with others.**

Education (art. 24)

47. The Committee is concerned:

(a) About the slow progress towards achieving inclusive education, the prevalence of special schools and classes for students who are assessed as having "mild to moderate special needs", and the near insurmountable barriers to inclusive education faced by children requiring higher levels of support;

(b) That school certificates of students with disabilities contain information on the adaptation of curricula, which may engender prejudice and discrimination among potential employers;

(c) That there is insufficient training for allied educators, teachers and non-teaching staff on the right to inclusive education, and that awareness-raising curricula as part of character and citizenship education are not based on the human rights model of disability.

48. **The Committee recalls its general comment No. 4 (2016) and target 4.5 of the Sustainable Development Goals, and recommends that the State party:**

(a) **Develop a strategy for the implementation of quality inclusive education for all students with disabilities, including students with intellectual disabilities, students with psychosocial disabilities and autistic students, with specific targets, timelines and a budget, at all levels of education, including tertiary and vocational education;**

(b) **Remove from the school certificates of students with disabilities all information on the adaptation of curricula, and strengthen measures to provide for individualized support and reasonable accommodation in education, including by allocating financial resources, in order to attain full inclusion of all students with disabilities in mainstream schools;**

(c) **Ensure continuous training for allied educators, teachers and non-teaching staff on inclusive education at all levels, including training in sign language and other accessible formats of information and communication, including Braille and Easy Read, and ensure that awareness-raising curricula are based on the human rights model of disability.**

Health (art. 25)

49. The Committee notes with satisfaction the information provided by the State party that it is planning to withdraw its reservation to article 25 (e) of the Convention upon the adoption of the guidelines for private insurers. However, it is concerned about:

(a) The barriers faced by autistic persons to access to private health and life insurance schemes and the associated conditions;

(b) The barriers to access to sexual and reproductive health-care services faced by persons with disabilities, particularly women and girls with disabilities, including women and girls with intellectual disabilities and women and girls with psychosocial disabilities;

(c) The lack of awareness among health-care service providers and medical staff of the rights of persons with disabilities and the absence of accessible forms of communication with users of health services;

(d) The obstacles to access to health care faced by persons with disabilities, in particular persons with disabilities in places of deprivation of liberty, throughout the COVID-19 pandemic.

50. **The Committee encourages the State party to withdraw its reservation to article 25 (e) of the Convention, as planned. The Committee recalls the links between article 25 of the Convention and targets 3.7 and 3.8 of the Sustainable Development Goals, and recommends that the State party:**

(a) **Enact legislation to ensure that all persons with disabilities, including persons with intellectual disabilities, persons with psychosocial disabilities and autistic persons, have access to health and life insurance on an equal basis with others, and that they are guaranteed equal conditions, without discrimination; and establish an effective monitoring mechanism with adequate measures to enforce this legislation, and remedies and sanctions in case of non-compliance;**

(b) **Provide access for persons with disabilities, in particular women and girls with disabilities, to sexual and reproductive health-care services, on an equal basis with others, and ensure supported decision-making for women with intellectual disabilities and women with psychosocial disabilities to enable them to exercise their sexual and reproductive rights and self-determination;**

(c) **Develop training for health-care professionals on the rights of persons with disabilities, including on their skills, support measures, and means and methods of information and communication, and provide information in accessible formats, including Braille, sign language and Easy Read, for persons with disabilities, particularly persons with intellectual disabilities, persons with psychosocial disabilities, and women and girls with disabilities;**

(d) **Provide all persons with disabilities, including persons with disabilities deprived of their liberty, with access to all health-care services available to the general population during the COVID-19 pandemic, and ensure priority access to diagnostic, vaccination and recovery treatment for persons with disabilities.**

Work and employment (art. 27)

51. The Committee notes with concern:

(a) The comparatively high level of unemployment among persons with disabilities, the disproportionately high level of employment of persons with disabilities in low-wage positions, and the segregation of persons with disabilities in sheltered workshops;

(b) The fact that the Tripartite Guidelines on Fair and Progressive Employment Practices do not contain a definition of disability or a clear and suitable understanding of indirect discrimination, and that the Tripartite Alliance for Fair and Progressive Employment Practices lacks an effective mechanism for implementation and monitoring;

(c) The fact that, despite the allocation of resources under the Open Door Programme, the measures taken to promote the employment of persons with disabilities are

insufficient to ensure access to the open labour market for persons with intellectual disabilities, persons with psychosocial disabilities and autistic persons on an equal basis with others;

(d) The fact that the jurisdiction of the employment claims tribunals is restricted mainly to salary-related and wrongful dismissal claims, and the absence of accessible and confidential procedures to report violations of labour law related to persons with disabilities;

(e) The attitudinal barriers deterring employers from hiring persons with disabilities, the lack of awareness among employers and the reluctance of employers to provide reasonable accommodation for persons with disabilities and to apply universal design.

52. **The Committee recalls its general comment No. 8 (2022) and target 8.5 of the Sustainable Development Goals, and recommends that the State party:**

(a) **Adopt legislation and time-bound policies and benchmarks to ensure that persons with disabilities have access to work and employment in the open labour market and are included in private and public work environments, on an equal basis with others, and move towards eradicating sheltered workshops;**

(b) **Undertake a comprehensive review of the Tripartite Guidelines on Fair and Progressive Employment Practices, including establishing a comprehensive definition of disability, prohibiting direct and indirect discrimination and recognizing the denial of reasonable accommodation as a form of prohibited discrimination, and establish within the Tripartite Alliance for Fair and Progressive Employment Practices an effective mechanism for implementation and monitoring to provide redress in case of non-compliance;**

(c) **Expand the Open Door Programme to provide longer-term support, in particular for persons with disabilities taking part in deinstitutionalization processes, autistic persons, persons with intellectual disabilities and persons with psychosocial disabilities;**

(d) **Extend the jurisdiction of the employment claims tribunals to all claims about violations of the right to work and employment of persons with disabilities, and establish an accessible and confidential mechanism to report such violations;**

(e) **Combat attitudinal barriers among private and public employers and apply universal design in all work-related environments.**

Adequate standard of living and social protection (art. 28)

53. The Committee notes with concern the situation of persons with disabilities without a regular source of income, and the absence of a comprehensive social protection system to guarantee an adequate standard of living for persons with disabilities and their families, including resources to cover expenses related to disability.

54. **The Committee recalls the links between article 28 of the Convention and target 10.2 of the Sustainable Development Goals – both of which seek to promote and guarantee the economic inclusion of all persons with disabilities, including persons with intellectual disabilities, persons with psychosocial disabilities and persons with autism – and recommends that the State party enact a comprehensive legal framework and allot financial resources to provide long-term social protection for persons with disabilities who do not have the financial means necessary to realize their right to an adequate standard of living.**

Participation in political and public life (art. 29)

55. The Committee notes with concern:

(a) The low level of representation of persons with disabilities, including women with disabilities, in political and public decision-making processes and in public life;

(b) The lack of accessibility of polling stations, voting procedures, facilities, print and online material, and general information about elections, including public electoral

debates and electoral programmes, for persons with disabilities, including persons with visual impairments, persons with hearing impairments and persons with intellectual disabilities;

(c) Reports about intimidation of and repression and retribution against organizations of persons with disabilities and their members who voice sharply critical views on government policies relating to persons with disabilities;

(d) Reports about intimidation of and possible retribution against organizations of persons with disabilities and their representatives as a consequence of their participation in the State party reporting procedure.

56. **The Committee recommends that the State party:**

(a) **Promote the participation of persons with disabilities, including women with disabilities, in political and public decision-making processes at all levels and in political life in general;**

(b) **Ensure that electoral and voting procedures, facilities, and print and online election material are accessible in all formats, such as Braille, plain language, Easy Read and sign language, or are available on accessible websites;**

(c) **Guarantee that all organizations of persons with disabilities and their members are able to participate in political and public life on an equal basis with others, irrespective of their views on the Government's policies regarding the implementation of the Convention, and that they do not face any intimidation, retribution or repression whatsoever from the Government or other public entities;**

(d) **Ensure that representatives of all organizations of persons with disabilities, irrespective of their views on the Government's policies regarding the implementation of the Convention, are able to participate in the State party reporting procedure without fear of intimidation, retribution or repression.**

C. Specific obligations (arts. 31–33)

Statistics and data collection (art. 31)

57. While noting some efforts undertaken by the State party in the collection of data, such as the inclusion in the 2020 national census of the Washington Group short set of questions on disability, the Committee notes with concern:

(a) Serious gaps in the collection of disaggregated data and statistics on persons with disabilities in all areas covered by the Convention, in particular work, employment, education and deprivation of liberty;

(b) The lack of systematic and comprehensive research about the living conditions of persons with disabilities and the barriers that they face in exercising their rights.

58. **The Committee recommends that the State party reinforce its use of the Washington Group short set of questions on disability and the Development Assistance Committee of the Organisation for Economic Co-operation and Development policy marker on the inclusion and empowerment of persons with disabilities in all its data-collection programmes, taking into consideration the local context, and providing training for the interpretation of data, and:**

(a) **Strengthen its system for collecting data on persons with disabilities, disaggregated by age, sex, sexual orientation, gender, race, ethnicity, income, migration status, level of education, employment situation and place of residence, in all areas of life, ensuring confidentiality and respect for the privacy of persons with disabilities;**

(b) **Allocate funds to undertake periodic research on the rights of persons with disabilities with the aim of identifying barriers to their realization;**

(c) **Support independent research, both quantitative and qualitative, to inform disability-related policies and measures aimed at ensuring the rights of persons with disabilities, and ensure the active involvement of and close consultation with**

persons with disabilities, through their representative organizations, throughout the planning, design and implementation of the data-collection processes.

International cooperation (art. 32)

59. The Committee is concerned that the State party does not systematically involve organizations of persons with disabilities in the planning, implementation, monitoring and evaluation of international cooperation activities.

60. **The Committee recommends that the State party take measures to ensure the effective participation, inclusion and consultation of persons with disabilities, through their representative organizations, in the planning, implementation, monitoring and evaluation of international cooperation programmes, including efforts aimed at implementing the 2030 Agenda for Sustainable Development, the Incheon Strategy and the Association of Southeast Asian Nations Enabling Master Plan 2025.**

National implementation and monitoring (art. 33)

61. The Committee notes with concern that the State party has not yet appointed an independent monitoring mechanism and does not have a national human rights institution accredited by the Global Alliance of National Human Rights Institutions. It is equally concerned that persons with disabilities, through their representative organizations, are not sufficiently involved in monitoring the implementation of the Convention.

62. **The Committee recommends that the State party:**

(a) **Establish a national human rights institution and designate an independent monitoring framework, including one or more independent mechanisms, that is in compliance with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles), and is accredited with A status by the Global Alliance of National Human Rights Institutions;**

(b) **Ensure that civil society, in particular a broad range of organizations of persons with disabilities, including organizations of persons with disabilities with sharply critical views of government policies relating to persons with disabilities, are involved and participate fully in monitoring the implementation of the Convention.**

IV. Follow-up

Dissemination of information

63. **The Committee emphasizes the importance of all the recommendations contained in the present concluding observations. With regard to urgent measures that must be taken, the Committee would like to draw the State party's attention to the recommendations contained in paragraph 20, on the right to life, paragraph 38, on living independently and being included in the community, and paragraphs 40 and 42, on freedom of expression and opinion, and access to information.**

64. **The Committee requests the State party to implement the recommendations contained in the present concluding observations. It recommends that the State party transmit the concluding observations for consideration and action to members of the Government and Parliament, officials in relevant ministries, local authorities and members of relevant professional groups, such as education, medical and legal professionals, as well as to the media, using modern social communication strategies.**

65. **The Committee strongly encourages the State party to involve civil society organizations, in particular organizations of persons with disabilities, in the preparation of its periodic report.**

66. **The Committee requests the State party to disseminate the present concluding observations widely, including to non-governmental organizations and organizations of persons with disabilities, and to persons with disabilities themselves and members of**

their families, in national and minority languages, including sign language, and in accessible formats, including Easy Read, and to make them available on the government website on human rights.

Next periodic report

67. **The Committee requests the State party to submit its combined second to fourth periodic reports by 18 October 2027 and to include in them information on the implementation of the recommendations made in the present concluding observations. The Committee also requests the State party to consider submitting the above-mentioned reports under the Committee's simplified reporting procedure, according to which the Committee prepares a list of issues at least one year prior to the due date set for the report of a State party. The replies of a State party to such a list of issues constitute its report.**